

		Based on the above, all the Goonewardene elements are met. (Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817, 830.) As explained by the Court in Ford Motor Warranty Cases (2023) 89 Cal.App.5th 1324: “If the signatories had intended to benefit FMC, such a purpose would have been easy to articulate. They could have simply named FMC – directly or by class as the vehicle’s manufacturer – as a person entitled to compel arbitration.” (Id. at p. 1339.) This is exactly what the instant Lease Agreement has done and, in doing so, they have communicated an intent to permit enforcement by moving Defendant as a third-party beneficiary. Based on the above, the Court finds that Defendant is entitled to enforce the arbitration provision within the Lease Agreement, as a third-party beneficiary. For these reasons, the court GRANTS Defendant MBUSA’s motion to compel arbitration and hereby STAYS the action pending resolution of the parties’ binding arbitration. Moving Defendant to give notice.
107	Hernandez v. Anaheim Palace Inc., 2024-01419077	MOTIONS FOR JUDGMENT ON THE PLEADINGS – GRANTED IN PART Defendants Edgar Maya and Eric Chang filed motions for judgment on the pleadings. The Court previously rejected Plaintiffs’ initial argument that the motions are barred because Defendants previously demurred to the Plaintiffs’ complaint. (See ROA 213) The Ninth cause of action for violation of Labor Code section 1158.5 cannot be stated against employees of the employer who has violated the statute. Therefore, the motion for judgment on the pleadings must be granted as to both Maya and Chang on that cause of action.

		The complaint does not contain any allegations that defendant Maya committed any acts supporting the 10th cause of action for hostile work environment. Sufficient facts are alleged to support a cause of action against defendant Maya on the 11th cause of action. Sufficient facts are alleged to support a cause of action against Chang on the 14th cause of action for IIED. The same is not true of defendant Maya. Sufficient facts are alleged to support a cause of action against Chang and Maya for violation of the UCL on the 15th cause of action. The motions for judgment on the pleadings are GRANTED as to defendant Chang on the 9th cause of action, and as to defendant Maya on the 9th, 10th, and 14th causes of action. Plaintiff's counsel shall advise the Court whether leave to amend is sought. If leave to amend is not sought, the trial date will remain. The Court notes that many of the causes of action alleged against all defendants would more properly be alleged against only the corporate defendant/employer. The Court encourages counsel for the parties to meet and confer as to the cause of action that will be pursued against each individual defendant at trial.
108	Legacy Capital Investment Group Inc. v. Legacy Investment Group I, LLC, 2025-01470274	DEMURRER – WITHDRAWN
109	Lopez v. Flores, 2024-01435693	TRANSFERRED TO INFORMAL DISCOVERY PROGRAM
110	Maya v. Target, 2023-01370674	CONTINUED